



8.012 Authorized Representatives

CFR § 246.7(j) Notification of participant rights and responsibilities; CFR § 246.12(r)(l)
Parents/Caretakers and proxies

I. Policy Statement

An Authorized Representative (AR) may apply for Program benefits for themselves or on behalf of an infant or child applicant. The AR is considered the primary person responsible for the participant enrolled in the Program. Adult participants are usually their own AR, but for infants and children the AR can be one of the following:

- Parent
- Caretaker
- Legal guardian
- Relative with whom the participant lives
- Spouse or significant other
- Individual who has significant knowledge of family history of the participant

The primary AR has the right to identify an Alternative Authorized Representative (AAR) during any point while in a valid certification but is not required to designate one. Both the AR and AAR shall have access to the family's WIC records. In order to have rights and access to the family's WIC records, an individual shall be recorded as an AAR in participant's HANDS record.

ARs and AARs shall be instructed on the Rules and Regulations of the WIC Program, including how to use WIC Food Benefits. Refer to Policy Section IX – Food Benefits, for additional details.

The designated AR, and AAR if applicable, is required to sign the “WIC Rights and Obligations” signature type in HANDS.

II. Procedures for Naming Authorized Representatives

A. If two ARs are present at certification:

- Request identification from both Representatives and enter their names into HANDS on the Family screen, including what proof of ID was seen
- “Rights & Obligations” signature type in HANDS shall be signed by one or both Authorized Representatives
- Explain the WIC Rules and Regulations to the Authorized Representatives, including WIC-eligible foods and how to use the eWIC card to redeem Food Benefits. Staff shall ask questions to verify the AR's understanding of how to use the eWIC card.

B. If the AR names an AAR who is not present:

- Staff will add the first and last names of the AAR in the appropriate fields on the Family screen, and will select the “Other” from the Proof of Identity drop-down list
- Staff will enter a Staff Alert stating AAR needs to show ID and sign R&O. However, no names shall be entered into the note, in order to ensure confidentiality.



C. If one AR is present and the AAR is not present at a subsequent certification:

- Request identification (ID) from the present AR and update in HANDS what proof of ID was seen
- For the AR who is not present, select “OTHER” from the Proof of Identity drop-down list
- “Rights & Obligations” signature type in HANDS shall be signed by the present AR
- When the AR who was not present at Certification returns to the clinic at a subsequent visit, ID will be verified and staff shall update the ID provided in the appropriate field on the Family screen in HANDS, and have the AR sign the R&O signature type in HANDS

Note: If the AAR is present and the primary AR is not present, the AAR can continue to sign the “Second AR Rights & Obligations” signature type in HANDS.

D. If the AR is contacting WIC remotely for non-certification appointments and names an AAR:

- For non-certification appointments, staff shall verify identity by either reviewing the AR’s ID or using identifiers such as having the AR verify their date of birth, address, and/or phone number
 - Staff will add the first and last name of an AAR in the appropriate fields on the Family screen and will select “OTHER” from the Proof of Identity drop-down list
 - Staff will enter a Staff Alert stating that the AAR needs to show ID and sign the R&O; no names shall be entered into the note in order to ensure confidentiality

III. Change of AR during a Certification period (i.e., Change of Guardianship and/or Custody)

When an AR changes **during** a certification period (i.e., change in guardianship and/or custody) stating that the infant/child is currently under their care, the clinic may issue up to three (3) months of food benefits to the infant/child **if ALL five (5) of the following conditions are met:**

1. The new AR shall bring the infant/child participant to the WIC appointment. If they do not bring the infant/child to the clinic, they are to be rescheduled.
2. The new AR shall show proof of the infant/child’s ID. If ID is not available, staff can issue one (1) month Food Benefits and have the AR return the following month with the appropriate documents.
3. The new AR shall sign the “Change of Authorized Representative” Form declaring that they are caring for the infant/child and an explanation of the circumstances that led them to becoming the caretaker (visit “Policies & Forms page under Local Agencies on www.dcwic.org for the Change of Authorized Representative Form).
4. LA staff will assist the new AR with the written statement if they are unable to write, and he or she shall sign the statement or make their identifying mark (see Appendix 8.001a).
5. The income of the new AR shall be verified by WIC staff to ensure it meets the WIC eligibility criteria.

Procedure:

A new Family ID number will be created in HANDS to accommodate the new AR’s demographic information. This procedure needs to occur even when the former and new AR(s) are from the same household. The infant/child will be transferred into this new family. The procedure is as follows:

1. In HANDS, identify the **correct participant to be moved** into the new family. Go to the Client screen.



2. If the new AR already has a HANDS record, select “transfer client” from the Client screen of the person to be transferred and select “existing family.” Search for the family you wish to transfer them into. Click the correct family and select “transfer client.” The participant is now in the new family.
3. If the new AR does not have an existing record in HANDS, select “transfer client” from the Client screen of the person to be transferred, and select “new family.” You will then be taken to a blank Family screen. Enter all information for the new AR. Click Save. The participant is now in the new family.
4. Proceed with the transaction. **NOTE: Verify and document the new AR’s income.**
5. The new AR shall sign the “WIC Rights and Obligations” signature type in HANDS.
6. If the new AR does not currently have an eWIC Card, an eWIC card will be issued to the family. The new AR shall sign the “eWIC Card Received” signature type in HANDS, if applicable.
7. The WIC staff member shall scan the completed Change of Authorized Representative form into the participant’s HANDS file.